

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202200569939CUPA: Clayton vs City of Oxnard
08/14/2026 in Department 21

Motion for Summary Judgment and/or Adjudication RE: by Sysco Ventura Inc, and James
Hunt's

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Motion for Summary Judgment, or in the Alternative, Summary Adjudication by Defendants Sysco Ventura, Inc. and James Hunt (*Opposed*)

Tentative Ruling:

The Court intends to rule as follows:

The motion for summary judgment is DENIED.

The alternative motion for summary adjudication is DENIED as to Issues Nos. 1 and 2 and GRANTED as to Issue No. 3 concerning Sysco Corporation, if Sysco Corporation remains a party to the action. If Plaintiffs have dismissed Sysco Corporation before the hearing, Issue No. 3 is moot.

Evidentiary objections

The Court rules only on those objections material to disposition of the motion. (CCP § 437c(q).)

As to the declaration of Jesse Wobrock, Ph.D., Defendants’ Objections Nos. 1-6 are OVERRULED, except that as to Objection No. 1, the Court does not rely on the precise 9:43 a.m. time absent further foundation, and as to Objection No. 5, the Court does not rely on Wobrock to determine or define the governing legal duty.

As to the declaration of V. Paul Herbert, Defendants’ Objections Nos. 7-9, 11, 15, and 17-18 are OVERRULED. Objections Nos. 10, 12, 14, and 16 are SUSTAINED IN PART to the extent

Herbert purports to state legal duties or offers an inadequately founded conclusion as to what Hunt necessarily would have perceived and the exact speeds at the time Hunt entered the intersection and began his turn; the objections are otherwise overruled. Objection No. 19 is SUSTAINED because the opinion concerning deficiencies in Sysco Corporation's training, supervision, and fleet-safety program lacks an adequate factual foundation as to that entity.

The Court does not adopt Plaintiffs' characterization that Hunt was subject to a freestanding "heightened duty of care" merely because he was a professional commercial driver. The governing legal standard is reasonable care under the circumstances, but expert testimony concerning what reasonably careful professional commercial drivers are trained and expected to do is relevant and sufficiently specialized to assist the factfinder under Evidence Code § 801. Evidence concerning Hunt's commercial-driving experience, the size and characteristics of the vehicle, road and weather conditions, applicable safety regulations, and relevant industry practices may be considered in determining what reasonable care required under the circumstances.

Defendants' UMFs

For Issues Nos. 1 and 2:

UMF Nos. 1-3: UNDISPUTED; ESTABLISHED.

UMF Nos. 4-5: DISPUTED; NOT ESTABLISHED as to the applicable signal phase/indication. The Court notes that the actual video/thumb drive was not received by the Court. The hyperlink embedded in Defendant's Notice of Manual Filing was invalid and inaccessible by the Court. Regardless, the signal sequence immediately preceding the turn bears directly on breach, timing, causation, and comparative fault. The competing characterization of what the video shows is not an admissibility issue; it creates a factual dispute as to what the video depicts. This factual dispute should not be resolved by weighing the evidence on summary judgment.

UMF Nos. 6-16: UNDISPUTED; ESTABLISHED.

UMF No. 17: DISPUTED; NOT ESTABLISHED as to whether Clayton's brake lights illuminated. The testimony of Ms. Rosenmund only establishes that *she* did not see any brake lights illuminated.

UMF Nos. 18-19: UNDISPUTED; ESTABLISHED.

UMF No. 20: DISPUTED; NOT ESTABLISHED as to whether Clayton's brake lights illuminated when he entered the intersection.

UMF Nos. 21-34: UNDISPUTED; ESTABLISHED.

Plaintiffs' relevance objections to UMF Nos. 7-8, 11, and 26-30 are OVERRULED. The facts remain relevant to the sequence of events, visibility, right-of-way, breach, causation, and comparative fault.

For Issue No. 3:

UMF No. 1: UNDISPUTED; ESTABLISHED.

UMF No. 3: UNDISPUTED; ESTABLISHED.

Plaintiffs' AMFs

The absence of a reply separate statement does not result in the AMFs automatically being deemed admitted. The Court considers the cited evidence, Defendants' arguments in reply, and the evidentiary rulings.

AMF No. 1: UNDISPUTED; ESTABLISHED, but of limited materiality.

AMF No. 2: UNDISPUTED; ESTABLISHED, but of limited materiality.

AMF No. 3: NOT ESTABLISHED. The evidence establishes Hunt's time constraints, but not that he knew he "had to rush."

AMF No. 4: NOT ESTABLISHED. The characterization that Hunt made a "rushed and hasty decision" is an inference rather than an established historical fact.

AMF No. 5 (erroneously labeled #1): DISPUTED; NOT ESTABLISHED. The underlying expert evidence may nevertheless be considered on breach and causation. This is not a new negligence theory: the Complaint already alleges failure to slow, maintain control and lookout, proceed cautiously, and operate at a reasonable speed.

AMF No. 6: UNDISPUTED; ESTABLISHED.

AMF No. 7: UNDISPUTED; ESTABLISHED, although of minimal independent significance.

AMF No. 8: DISPUTED; NOT ESTABLISHED. Whether Hunt owed a freestanding "heightened duty of care" is a legal question for the Court.

AMF No. 9: DISPUTED; NOT ESTABLISHED. The admissible expert opinion may nevertheless support a triable issue concerning breach.

AMF No. 10: DISPUTED; NOT ESTABLISHED as a statement of legal duty. The underlying industry-standard evidence concerning a "space cushion" may be considered.

AMF No. 11: DISPUTED; NOT ESTABLISHED. The Court disregards the “heightened duty” characterization but considers the admissible space-management evidence.

AMF No. 12: UNDISPUTED; ESTABLISHED only as to Hunt’s stated belief that the light may have been red when he made the turn. NOT ESTABLISHED as to the actual color of the signal at that time.

AMF No. 13: DISPUTED; NOT ESTABLISHED insofar as it purports to state a legal duty. The underlying expert evidence concerning visual-search practices may be considered.

AMF No. 14: DISPUTED; NOT ESTABLISHED. The admissible industry-standard evidence may be considered in determining reasonable care.

AMF No. 15: DISPUTED; NOT ESTABLISHED. The expert evidence may be considered on the pleaded lookout theory.

AMF No. 16: DISPUTED; NOT ESTABLISHED. The admissible evidence concerning caution, lookout, and yielding creates a triable issue rather than establishing the fact as a matter of law.

AMF No. 17: DISPUTED; NOT ESTABLISHED. The admissible evidence concerning Hunt’s speed and timing creates a triable issue concerning breach and causation.

Issue No. 1 (First Cause of Action for Negligence)

Summary adjudication is DENIED.

It is undisputed that decedent Steve Earl Clayton entered the intersection after Hunt, failed to stop at the northbound limit line, and entered the intersection while the northbound signal was red. Plaintiffs acknowledge Clayton was negligent and bears some responsibility for the collision.

These facts do not establish, however, that Clayton’s negligence was the sole cause of the collision. California follows comparative negligence, under which a plaintiff’s negligence does not preclude recovery where the defendant’s negligence also contributed to the injury. (*Li v. Yellow Cab Co.* (1975) 13 Cal.3d 804, 828-829.)

Defendants have presented substantial evidence that Hunt entered the intersection first, while the signal facing him was yellow, and that no vehicle then occupied the intersection or his immediate path of travel. Nevertheless, Plaintiffs have presented admissible evidence from which a reasonable trier of fact could find that Hunt also failed to exercise reasonable care in executing the left turn.

Plaintiffs’ evidence supports competing inferences concerning whether Hunt adequately monitored approaching northbound traffic, reasonably controlled his speed under the wet roadway conditions, selected a sufficient gap for a lengthy double-trailer combination, and

reasonably timed the maneuver so that the vehicle could clear the northbound lanes without creating a traffic conflict. The Court may not weigh those competing inferences on summary judgment.

Defendants' reliance on the video evidence does not eliminate these disputes. Although the Court has not seen the video evidence, the actual viewing of the videos is immaterial to the Court's rulings herein. Specifically, the recordings may establish certain physical facts, including the sequence in which the vehicles entered the intersection and the color of Clayton's signal when he entered. Plaintiffs' negligence theory, however, does not require the Court to reject those facts. Plaintiffs contend that, notwithstanding Clayton's negligence, Hunt's own conduct in approaching and executing the turn contributed to the collision. The expert testimony and other evidence are sufficient to raise a triable issue on that question.

Nor are Plaintiffs' speed, lookout, caution, and vehicle-control theories impermissibly outside the pleadings. The Complaint expressly alleges, among other things, that Hunt failed to slow, remain alert, maintain a proper lookout and control, proceed cautiously, yield, and operate the vehicle at a reasonable speed under the circumstances. The expert evidence provides evidentiary detail concerning those pleaded theories rather than an entirely new basis of liability.

The Court also rejects Defendants' argument that the Estate cannot pursue the first cause of action because no duty was owed to an estate that did not yet exist at the time of the collision. A survival action preserves a cause of action that belonged to the decedent and permits its enforcement by the personal representative or successor in interest after death. (CCP §§ 377.20, 377.30.) The Complaint identifies the Estate through its representative and alleges injuries and damages personally sustained by Clayton between the collision and his death. The claim is therefore not defeated merely because it is not separately captioned as a "survival" cause of action.

Plaintiffs have agreed to abandon their direct negligent hiring and supervision theories against Sysco Ventura. Further, because Sysco Ventura admits Hunt was acting within the course and scope of his employment, any independent negligent-entrustment theory based upon Hunt's operation of the vehicle does not provide a separate basis for recovery. These concessions do not dispose of the negligence cause of action based upon Hunt's alleged negligent driving and Sysco Ventura's corresponding vicarious liability.

Accordingly, triable issues remain as to Hunt's breach, causation, and the parties' comparative fault.

Issue No. 2 (Third Cause of Action for Wrongful Death)

Summary adjudication is DENIED.

Defendants contend that the wrongful-death claim fails because Plaintiffs cannot establish an underlying tort by Hunt. Because triable issues remain concerning Hunt's negligence and whether his conduct was a substantial factor in causing the collision, Defendants have not conclusively negated the underlying-tort element of the wrongful-death claim.

Clayton's comparative negligence, if proved, may reduce any recovery attributable to Defendants' fault, but it does not defeat the wrongful-death claim unless Clayton's negligence was the sole legal cause of the collision. The present record does not establish sole causation as a matter of law.

Issue No. 3 (Sysco Corporation)

Summary adjudication is GRANTED, provided Sysco Corporation remains a party to the action. The evidence establishes that Hunt was employed by Sysco Ventura, Inc. and was acting within the course and scope of that employment, and that Sysco Ventura owned the subject vehicle. Plaintiffs expressly state in opposition that Sysco Corporation will be dismissed in light of those admissions.

Accordingly, if Sysco Corporation remains a defendant, summary adjudication of the first and third causes of action in its favor is granted. If Plaintiffs have already dismissed Sysco Corporation, Issue No. 3 is moot.

Disposition

Defendants' motion for summary judgment is DENIED.

Defendants' alternative motion for summary adjudication is:

1. DENIED as to Issue No. 1, the first cause of action for negligence;
2. DENIED as to Issue No. 2, the third cause of action for wrongful death; and
3. GRANTED as to Issue No. 3 concerning Sysco Corporation, if Sysco Corporation remains a party; otherwise, Issue No. 3 is MOOT.

Plaintiffs' negligent hiring and supervision theories against Sysco Ventura, Inc. are deemed abandoned consistent with Plaintiffs' opposition. The first cause of action otherwise remains for adjudication based on Hunt's alleged negligence and Sysco Ventura, Inc.'s vicarious liability.

Defendants Sysco Ventura, Inc. and James Hunt shall give notice.